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Case Number: 26STCV10723 Hearing Date: September 18, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 09/18/2026

CASE NUMBER: 26STCV10723

CASE NAME: Aquino vs. Jetselect,
LLC, et al.

MOVING PARTY: Defendant Stephen Barnhouse

OPPOSING PARTY: Plaintiff Rosette Aquino

PROCEEDING: MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

RULING

SUMMARY: The motion to quash
service of summons is denied. Defendant Barnhouse
shall file an Answer within ten days of this Ruling. The Court continues the
Case Management Conference to _____, 2026, at 8:30AM.

Background

On April 2, 2026,
Plaintiff Rosette Aquino ("Plaintiff") filed a complaint against Defendants JetSelect,
LLC dba Vista America, Stephen Barnhouse, and Does 1 through 10, inclusive,
alleging causes of action for (1) Sex/Gender Discrimination and Harassment in
Violation of FEHA; (2) Assault; (3) Battery; (4) Negligent Supervision; and (5)

Negligent Retention. The action arises from alleged assault, battery, and harassment committed by Defendant Stephen Barnhouse ("Barnhouse"), who is employed as a Pilot by Defendant JetSelect, LLC ("JetSelect"), during a commercial flight on October 21, 2024, during which Plaintiff worked as a Cabin Hostess.

On May 11, 2026, Barnhouse's counsel removed this action to the United States District Court for the Central District of California. On May 28, 2026, the action was remanded back to this Court per a joint stipulation.

On June 1, 2026, Barnhouse filed his Motion to Quash Service of Summons and Complaint. On September 4, 2026, Plaintiff filed her Opposition. On September 11, 2026, Barnhouse filed his Reply.

LEGAL

STANDARD – MOTION TO QUASH SERVICE

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defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to section 418.10. (Code Civ. Proc., § 581, subd. (h).)¿

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court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) "The Due Process Clause protects an individual's liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful 'contacts, ties, or relations.'" (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471 – 472.) A state court may not exercise personal jurisdiction over a party under circumstances that would offend "traditional notions of fair play and substantial justice." (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)¿

When a

defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise

of jurisdiction. (Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd. (2019) 31 Cal.App.5th 543, 553.) Once facts showing minimum contacts with the forum state are established, the defendant has the burden to demonstrate the exercise of jurisdiction would be unreasonable. (Ibid.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. [Citation.] The plaintiff cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts. [Citation.]" (Strasner v. Touchstone Wireless Repair & Logistics, LP (2016) 5 Cal.App.5th 215, 222.)

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defendant is subject to a state's general jurisdiction if its contacts "are so continuous and systematic as to render [it] essentially at home in the forum State." (Daimler AG v. Bauman (2014) 571 U.S. 117, 127.) A nonresident defendant may be subject to specific jurisdiction in the forum "if the defendant has purposefully availed himself or herself of forum benefits [citation], and the 'controversy is related to or 'arises out of' a defendant's contacts with the forum.' [Citations.]" (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 446.) This test does not require a "causal relationship between the defendant's in-state activity and the litigation." (Ford Motor Co. v. Montana Eighth Judicial District Court (2021) 592 U.S. 351, 362) The "arise out of" standard "asks about causation," but "relate to" does not. (Ibid.) "[W]hen a corporation has 'continuously and deliberately exploited [a State's] market, it must reasonably anticipate being haled into [that State's] court[s] to defend actions 'based on' products causing injury there." (Id. at p. 364.)

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests that the Court take judicial notice of: (1) Certification and Notice of Interested Parties filed by Defendants JetSelect LLC and Stephen Barnhouse on May 11, 2026; (2) Stipulation to Remand filed on May 27, 2026; and (3) Order remanding the action to the Superior Court of California for the County of Los Angeles, entered on May 28, 2026. (RJN at p.2; Exs. A-C.)

The request is granted. (Evid.

Code § 452(d), (h); *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8 Cal.App.5th 23, 37.) The Court takes judicial notice of these documents only as to “the existence, content and authenticity of public records and other specified documents;” it does not take judicial notice of the truth of any factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400.)

DISCUSSION

A.

General Jurisdiction

General jurisdiction is not at issue here.

General jurisdiction exists where the activities of a non-resident defendant are so “extensive or wide-ranging” or “substantial ... continuous and systematic” to establish a constitutionally sufficient relationship to warrant jurisdiction for all causes of action asserted against it. *ℳ (Cornelisonℳ v. Chaneyℳ* (1976) 16 Cal.3d 143, 147.)

Plaintiff does not dispute that the Court lacks general jurisdiction over Barnhouse and only asserts arguments as to specific jurisdiction in her opposition. Accordingly, the Court analyzes whether Plaintiff presents sufficient evidence that Barnhouse is subject to specific jurisdiction in California.

B. Specific

Jurisdiction

A court may exercise specific jurisdiction over a defendant when three elements are satisfied: “(1) ‘the defendant has purposefully availed himself or herself of forum benefits’ [citation]; (2) ‘the controversy is related to or “arises out of” [the] defendant’s contacts with the forum’ [citation]; and (3) ““the assertion of personal jurisdiction would comport with ‘fair play and substantial justice’” [citation.]” (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 269.)

Here, Barnhouse argues that there is no factual basis to establish specific jurisdiction because Barnhouse has not purposefully availed himself of California’s benefits and the controversies

at issue are not related to Barnhouse's forum-related contacts. (Motion at pp. 6-8 [“Plaintiff’s theory improperly conflates JetSelect’s contacts with those of Barnhouse. The Complaint relies on JetSelect’s California operations to establish jurisdiction (Compl. ¶¶ 2(c), 4), but jurisdiction must be assessed as to each defendant individually. Plaintiff further alleges that Barnhouse availed himself of California by working on flights departing from the state (Compl. ¶ 6), yet also admits he acted solely within the course and scope of his employment (Compl. ¶¶ 1, 13). These allegations confirm that any contacts are derivative of his employment—not the result of deliberate, personal forum-directed conduct. ... the alleged conduct occurred within a transitory, federally regulated aviation context, not from Barnhouse invoking the benefits or protections of California law or targeting the forum. (Barnhouse Decl. ¶¶ 10-14) This attenuated connection is insufficient to satisfy the “arising out of” requirement. See Vons, supra, 14 Cal.4th at 452.”].)

1.

Purposeful Availment

Purposeful availment “focuses on the defendant’s intentionality. This prong is satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on his contacts with the forum.” (Pavlovich, supra, 29 Cal.4th at p. 269.)

Plaintiff argues that Barnhouse is subject to specific jurisdiction because the claims arise from an intentional tort he committed while physically present in California. (Opp., at p. 6.) Plaintiff relies on Taylor-Rush v. Multitech Corp. (1990) 217 Cal.App.3d 103, 113, and Calder v. Jones (1984) 465 U.S. 783, in support. Plaintiff further argues that Barnhouse cannot “shield” himself from jurisdiction by arguing that his conduct is derivative of his employment. (Opp., at pp. 7-8.) Lastly, Plaintiff argues that Barnhouse’s relevant contacts with California were not incidental or “transitory,” and the real issue “is whether California may adjudicate claims arising from intentionally tortious conduct this pilot engaged in while here.” (Opp., at p. 9.)

Plaintiff relies solely on Barnhouse’s and her own Declarations as evidentiary support.

Barnhouse states in his declaration that he was employed by JetSelect at the time of the incident and occasionally operated flights originating from and/or landing in California (like LAX). (Barnhouse Decl., ¶¶ 7-8.) He did not personally select California as a business destination but instead was directed by JetSelect's operational needs and assignments. (Id., ¶ 9.) He states that the alleged incident arises solely out of his duties as prescribed in the course and scope of his employment and his presence in California's airspace was "transitory in nature and incidental to interstate aviation operations." (Id., ¶¶ 14-15.)

Plaintiff states the following in her declaration: On October 21, 2024, she was assigned to work as a Cabin Hostess for a flight from LAX to Moffett Federal Airfield in Mountain View, California; Barnhouse was the Captain and Pilot in Command. (Aquino Decl., ¶ 3.) Fifteen minutes after departure, while the plane was in California's airspace, Barnhouse approached Plaintiff "and forcefully grabbed [her] right hand and wrist." (Id., ¶¶ 4-5.) Plaintiff attempted to remove her hand, but Barnhouse maintained his hold and "flung" her hand, resulting in the parts of the table at which she was seated to break. (Id., ¶ 6.) She reported the incident both during the flight and once it landed. (Id., ¶¶ 8-9.) As a Cabin Hostess, Plaintiff worked through and interacted with JetSelect's fixed-base operator location at Van Nuys Airport; she also worked with Barnhouse on multiple flights, including the October 21 flight. (Id., ¶¶ 13-17.)

Martensen v. Koch, 942 F.Supp.2d 983 (N.D. Cal. 2013) is applicable and persuasive here. In Martensen, the plaintiff alleged that defendant falsely imprisoned him through his agents' actions, which included ordering him onto a flight from Denver to Oakland, CA on a private plane allegedly owned and/or controlled by defendant. (Id. at 995.) The court found that "Plaintiff's allegations that Defendant committed the tort of false imprisonment within the forum satisfy the prima facie requirement for personal jurisdiction." (Ibid.) The court also noted that because the alleged tortious conduct occurred in California, the Calder effects test is not relevant. (Id. at 994; Calder v. Jones (1984) 465 U.S. 783.)

Based on the analysis in Martensen, Plaintiff has established sufficient evidence of Barnhouse's purposeful availment of California. Barnhouse's argument that his presence in California was employer directed and thus not purposeful is unpersuasive. Purposeful availment hinges on the defendant's

intentional conduct. Barnhouse does not dispute that the alleged incident occurred in California airspace on a flight that departed from a California airport and landed in another California airport. Accordingly, the alleged intentional torts committed by Barnhouse while in California airspace satisfy the purposeful availment prong.

2.

Relatedness

The relatedness inquiry is not strictly causal and instead focuses on whether “the claim bears a substantial connection to the nonresident’s forum contacts.” (*Vons Companies, Inc.*, *supra*, 14 Cal.4th at 452.)

Plaintiff argues in opposition that her claims arise directly from the alleged assault and battery committed by Barnhouse. (*Opp.*, at pp. 10-11 [“The argument artificially separates Barnhouse’s California contact from the conduct giving rise to this action. They are the same occurrence. Barnhouse was physically present in California, serving as Captain of a flight originating at LAX and traveling to another California airport, when he left the flight deck, entered Plaintiff’s workspace, grabbed her hand and wrist, and forcefully caused her hand to strike and break part of the table. (Aquino Decl., ¶¶ 3-6.) Plaintiff’s claims against Barnhouse arise directly from that conduct.”].) Plaintiff further argues that Barnhouse’s authorities are not applicable here because her argument supporting jurisdiction relies on Barnhouse’s intentional conduct while present in California airspace, not “because Barnhouse landed an aircraft here or happened to be physically present here.” (*Opp.*, at p. 11.)

Plaintiff relies on the same evidence as above: On October 21, 2024, she was assigned to work as a Cabin Hostess for a flight from LAX to Moffett Federal Airfield in Mountain View, California; Barnhouse was the Captain and Pilot in Command. (Aquino Decl., ¶ 3.) Fifteen minutes after departure, while the plane was in California’s airspace, Barnhouse approached Plaintiff “and forcefully grabbed [her] right hand and wrist.” (*Id.*, ¶¶ 4-5.) Plaintiff attempted to remove her hand, but Barnhouse maintained his hold and “flung” her hand, resulting in the parts of the table she was seated at to break. (*Id.*, ¶ 6.) She reported the incident both during the flight and once it landed. (*Id.*, ¶¶ 8-9.) As a Cabin Hostess, Plaintiff worked through and interacted with JetSelect’s fixed-base operator location at Van

Nuys Airport; she also worked with Barnhouse on multiple flights, including the October 21st flight. (Id., ¶¶ 13-17.) Barnhouse also acknowledges that the alleged incident arose while present in California's airspace, even though he argues said contact was "transitory in nature and incidental to interstate aviation operations." (Barnhouse Decl., ¶¶ 14-15.)

Plaintiff alleges that the intentional torts were committed in the California airspace by Barnhouse; the claims arise out of this very (direct) conduct. (Compl., ¶¶ 33-43.) Based on the foregoing, the Court finds that Plaintiff has satisfied her burden. (See Martensen, supra, 942 F.Supp.2d at 996 ["Because Plaintiff has adequately alleged that Defendant committed the tort of false imprisonment within the forum, the Court accordingly finds that Plaintiff has made a prima facie showing of minimum contacts needed to establish personal jurisdiction."].)

3.

Fair Play and Substantial Justice

"In making this determination [as to whether the assertion of jurisdiction would comport with fair play and substantial justice], the court must consider the burden on the defendant, the interests of the forum State, and the plaintiff's interest in obtaining relief. It must also weigh in its determination the interstate judicial system's interest in obtaining the most efficient resolution of controversies; and the shared interest of the several States in furthering fundamental substantive social policies." (Snowney v. Harrah's Entertainment, Inc. (2005) 35 Cal.4th 1054, 1070.)

Barnhouse argues that this Court's exercise of jurisdiction would not be reasonable over him because: (1) he would be unfairly prejudiced as a Florida resident; (2) California lacks an interest in this case because both Barnhouse and Plaintiff are Florida residents; (3) Plaintiff, as mentioned, is not a California resident and she is "attempting to improperly use California's more stringent and robust laws to her advantage;" and (4) "the extent to which Plaintiff's causes of action arise out of Barnhouse's local activities ... is extremely attenuated." (Motion at pp. 9-10.)

Plaintiff argues in opposition that Barnhouse's reliance on his out-of-state status is irrelevant because this

fact does not inherently make jurisdiction unreasonable and because Barnhouse's work had him traveling to California. (Opp., at p. 12.) In addition, the assault and incident report occurred in California and Plaintiff was treated in a California hospital for her alleged injuries. (Id.) Plaintiff contends that the exercise of jurisdiction is reasonable because the action is already pending in this Court for the same issue and California is directly connected to the intentional torts alleged. (Id)

The Court finds that factors weigh in favor of litigation in California. Plaintiff alleges that she was assaulted in California. California has an interest in resolving this dispute in California because Plaintiff sustained her injuries in California. Additionally, other Defendants to this action are properly sued in California. The interstate judicial system has an interest in allowing this matter to stay in California because it is most efficient to resolve Plaintiff's dispute with Barnhouse in California together with the other Defendants.[1]

Conclusion

Stephen Barnhouse's Motion to Quash Service of Summons and Complaint is DENIED. Barnhouse shall file an Answer within ten days of this Ruling. The Court continues the Case Management Conference to _____, 2026, at 8:30AM.

Date: 09/18/2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court

[1]
Because the Motion was denied on independent pleading grounds, the Court does not address Plaintiff's argument that the joint stipulation to remand constitutes a waiver.